

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT**

Case No. Writ Petition No.11971 of 2015
Haji Muhammad **Versus** Justice of Peace & others.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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01) 18.08.2015 Syed Aqeel Akhtar Zaidi, Advocate for the petitioner.

Through this constitutional petition, the petitioner has assailed the order dated 28.07.2015 passed by respondent No.1 issuing direction to respondent No.2 to record the version of respondent No.3 under Section 154 Cr.P.C if commission of cognizable offence is made out.

2. Brief facts as narrated by respondent No.3 in his proposed crime report are that on 20.11.2014 at 05:00 p.m. on the request of petitioner, he (respondent No.3) gave Rs.2,00,000/-to the petitioner as loan/‘قرض حسنہ’ and in lieu thereof the petitioner issued a cheque No.1372086 of the same value in the name of respondent No.3 which stood dishonoured on presentation to the concerned bank. Thereafter respondent No.3 filed an application under Section 22-A & 22-B Cr.P.C before respondent No.1 who passed the impugned order.

3. Learned counsel for the petitioner inter-alia, contends that the impugned order has been obtained by respondent No.3 through concealment of real facts and misrepresentation; that in fact the cheque in question was issued as guarantee by the petitioner in the name of one Luqman who obtained loan from

respondent No.3; that said Luqman had repaid the entire amount to respondent No.3 but he due to mala-fide did not return the cheque and obtained the impugned order; that the perusal of proposed crime report itself reflects that the amount was given to the petitioner as 'Qarz-e-Hasna' and that was to be returned according to the convenience of the petitioner and thus no criminal liability constitutes against the petitioner; that respondent No.1 passed the impugned order in a slipshod manner without considering the factual aspects of the matter in issue and finally craves for setting aside the impugned order dated 28.07.2015 passed by respondent No.1.

4. Heard. Record available on the file perused.

5. Perusal of application moved by respondent No.3 to respondent No.1 under Sections 22-A & 22-B Cr.P.C reveals the commission of a cognizable offence by the present petitioner as he on 20.11.2014 voluntarily issued the cheque in question for repayment of loan for a specific date, i.e. 10.03.2015 that, on presentation was dishonoured by the concerned bank. Under the law, when any information regarding the commission of a cognizable offence is provided to a Station House Officer, he is under legal obligation to proceed under Section 154 Cr.P.C. The averments made by the petitioner's learned counsel regarding the factual aspects of the matter, if addressed, would amount to resolve the factual controversy that cannot be done by this Court in exercise of its constitutional jurisdiction under article 199 of the Constitution of the Islamic Republic of Pakistan, 1973. So far as his contention qua nature of loan, i.e. 'Qarz-e-Hasna' which is to be returned when possible/convenient for the loanee, is concerned, this Court is of the opinion that when the loanee of 'Qarz-e-Hasna' voluntarily and knowingly issues a cheque for a specific date and even then if the same is

dishonoured, it constitutes a cognizable offence in terms of Section 489-F PPC. In view of above discussion, I do not find any illegality or infirmity in the impugned order requiring interference by this Court hence, the instant petition is dismissed **in limine**, being devoid of any merit.

However, if a criminal case is registered at the instance of respondent No.3, the Investigation Officer shall bring on record all the evidence oral as well as documentary, if any, produced by the petitioner at appropriate stage of the investigation and shall proceed strictly in accordance with law.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

Nazir